

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505545	WELLS FARGO BANK, N.A. VS CABALLERO	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF WELLS FARGO BANK, N.A. BY WELLS FARGO BANK, N.A.

Tentative Ruling: Plaintiff Wells Fargo Bank, N.A.'s unopposed motion for judgment on the pleadings is GRANTED, as is the request for judicial notice filed in support thereof.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges a cause of action for breach of contract (written). This cause of action requires plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Julieta Caballero's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed, including the discovery requests deemed admitted for all purposes in this litigation (see *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485), show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a card to defendant and providing monthly statements; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$9,608.74. Nothing in defendant's answer negates any of these elements. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600144	WEDEMEYER VS BEALL	RESPONDENT'S MOTION FOR ATTORNEY'S FEES

Tentative Ruling: Respondent Susan Beall's motion for attorney fees is DENIED WITHOUT PREJUDICE. There is no indication the motion was served on petitioner David Wedemeyer.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2603576	LEVI VS MESH	RESPONDENT'S MOTION FOR ATTORNEY FEES

Tentative Ruling: Respondent Ronald Mesh's motion for attorney fees is GRANTED IN PART.

A court has discretion to award attorney fees to the prevailing party in a civil harassment restraining order matter. (CCP 527.6(s).) Any such fee award must be based on a reasonable number of hours worked and a reasonable hourly rate for the local community. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Here, respondent seeks \$14,750.00 in fees based on 29.5 hours of his attorney's work at a rate of \$500.00 per hour. The court deems the number of hours expended on this simple restraining

order matter—15 hours on research and writing, seven hours on preparing for and attending the hearing, more than six hours on the instant motion, and another hour for the hearing on the motion—to be grossly excessive. His attorney's hourly rate is also significantly higher than the court typically awards for similar work. The court instead awards attorney fees for a reasonable eight hours of work at a reasonable rate of \$350.00 per hour.

Respondent also seeks reimbursement for \$863.48 in court costs. He provides no cost memorandum or other evidence documenting these costs, however. The court accordingly awards the \$450.00 in costs respondent incurred for filing his response to the restraining order request, the only amount documented in court records.

Petitioner is ordered to pay respondent a total of \$3,250.00 in attorney fees and costs. Payment to be made within 15 days of this order.